

Court No. - 29

Case :- WRIT - C No. - 40724 of 2024

Petitioner :- Smt Hardei

Respondent :- State Of Uttar Pradesh And 4 Others

Counsel for Petitioner :- Rajneesh Kumar Sharma, Vinod Shankar Tripathi

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Gautam Chowdhary, J.

1. List of fresh cases is revised. No one is present on behalf of petitioner to press the petition.

2. Learned Standing Counsel for the respondent-State as well as Shri Ram Chandra, holding brief of Shri Prajnal Mehrotra, learned counsel for the respondent Nos. 2 to 5-Pashchimanchal Vidyut Vitran Nigam Ltd. are present.

3. Present petition has been has filed with the following main reliefs:

"(i) Issue a writ, order or direction in the nature of **Certiorari** quashing the impugned letter no. 8643 dated 22.03.2024 (Annexure-1), to this writ petition, in the interest of justice.

(ii) Issue a writ, order or direction in the nature of **MANDAMUS** directing the respondent no. 4 to decide the petitioner's representation/ objection dated 14.08.2024 (Annexure-13), to this writ petition, within stipulated period, in the interest of justice."

4. Learned counsel for Power Corporation submits that the petitioner has effective alternative remedy under Section 127 of the U.P. Electricity Supply Code, 2005, and therefore, the present petition would not be maintainable. He further pointed out that the present petition is beyond time by 161 days.

5. The petition, accordingly, dismissed on the ground of alternative remedy available to the petitioner.

6. The petitioner is at liberty to avail the alternative statutory remedy, if not already availed.

7. With these observations, the petition stands **dismissed**.

8. Learned counsel for the Power Corporation undertakes to inform the learned counsel for the petitioner about this order in writing passed today.

Order Date :- 9.12.2024
Mustaqeem.